



Recruiter Fee Agreement

This recruiter fee agreement (“Agreement”) is entered into on the date signed below by and between Light Speed Staffing Solutions dba Mayday Dental Staffing with its principal place of business in Walnut Creek, California, (“Recruiter”) and _____ on behalf of itself and its affiliates with its principal place of business at _____ (“Company”), each a “Party” and collectively the “Parties.”

1. Services and Terms

A. Recruiter’s Services

- 1.1 Recruiter provides recruiting services on a referral fee basis to assist dental offices and professionals in locating dental personnel for temporary and permanent employment by dentists. ***Recruiter is not an employment agency and does not employ any of the candidates it screens.*** Rather, Recruiter screens potential candidates and, for a fee, will provide information about those candidates who have appropriate educational and professional backgrounds to Company for Company’s consideration in hiring. Company, who will be the sole employer of any hired candidate, will make its own determination regarding the qualifications of any such candidates and agrees to pay Recruiter fees (described below) for any temporary or permanent placements of candidates located and referred by Recruiter.
- 1.2 As part of its screening services, Recruiter will interview all potential candidates and verify each candidate’s license qualifications, if licenses are applicable. Recruiter will use its best efforts to assess each candidate’s abilities and knowledge. However, Company acknowledges that there is no way for Recruiter to guarantee there will be a personality, knowledge, clinical aptitude, or skill match between a candidate and Company and its employees. If an otherwise technically qualified Candidate is not a match for Company, Company acknowledges and agrees it is required to pay Recruiter for its fees as described in Section 3 herein.
- 1.3 Recruiter does not provide background searches as part of its assessment of candidates.

If Company wishes to have Recruiter perform such background searches, Company shall make a written request for such search to be run. Upon receipt of such written request, Recruiter will perform a background search to include criminal history of any candidate upon receipt of authorization by candidate to run such background search and payment in the amount of **\$50** by Company for each requested search.

- 1.4 Recruiter's hours are Monday through Friday from 8 a.m. to 5 p.m. California time. Although Recruiter can be available to Company 24 hours per day, 7 days per week, if services are requested outside the normal operating hours described above, an extra fee for emergency and/or last minute services will be paid by Company (the "Services on Demand Fee"). For instance, if Company contacts Recruiter at 6 a.m. to request a candidate for placement that same day, the Services on Demand Fee will apply. By contrast, if the same request is made at 8 a.m., no additional fee will be implemented. Equally, if a call is placed Saturday for a candidate on Monday, the Services on Demand Fee will apply. The Services on Demand fee are listed in Section 3 below. Notwithstanding any additional fees, last minute services are extremely time consuming and there is no guarantee that Recruiter will be able to locate a qualified candidate (or cancel a candidate who has been confirmed by the Company) on short notice. If Services on Demand are requested because they are required in order to replace a candidate placed by Recruiter who cancels on Company with less than 24 hours' notice, then no Services on Demand Fee will apply.
- 1.5 Recruiter will not discriminate in its assessment, location, and referral of candidates to Company. Company understands it is both illegal and morally improper to discriminate against a potential candidate based upon sex, race, sexual orientation, gender, religion, age, marital status, pregnancy status, disability, or national origin. As such, Company shall not ask Recruiter to send candidates to Company based upon these characteristics or any other discriminatory qualification. Notwithstanding the above, the Parties hereto acknowledge that if a dental office works with individuals who speak a certain language, it may be necessary to find candidates who speak that language in order to perform the services required of them. Language skills are thus considered a bona fide occupational qualification for those specific placements.
- 1.6 Recruiter reserves the right to refuse service to anyone. Recruiter is under no obligation

to refer candidates to Company, regardless of whether Recruiter has provided candidates in the past.

- 1.7 Recruiter is not responsible for any illegal or unethical acts performed by Candidate. Company is solely responsible for the management of any referred candidate. Recruiter has no responsibility for Company's payroll, collections for services provided by candidates, stolen property from Company, improper behavior by candidates, or problems with attitude or ability of the candidates to get along with Company's staff. Company itself will screen candidates for such issues and will be solely responsible for any issues arising related to these matters.

2. Company's Obligations

- 2.1 Company is the employer of any candidate it chooses to hire from Recruiter. Company is solely responsible for all employment-related issues as it relates to candidates. Company acknowledges that Recruiter does not employ any candidate, does not pay any compensation to any candidate, does not provide any employment benefits to any candidate, and does not carry or provide any insurance coverage of any kind for any candidate. Such responsibilities and obligations are borne solely by the Company. Company is the employer of any candidate it hires and is responsible for all employer obligations and duties as they relate to any candidate, including payroll and income reporting to state and federal agencies. Company is responsible for the creation, maintenance, and enforcement of its own office policies and procedures and is responsible for training candidates regarding same and overseeing any issues related to said policies.
- 2.2 The Parties agree and acknowledge that Recruiter is not a staffing company and is not an employer of any candidate it refers to Company. It is Company's sole responsibility and obligation to ensure proper payment is made to any referred candidate, including, to the extent required by law, payment of wages, provision of workers compensation insurance, sick time, and other benefits. It is Company's sole responsibility to address any workplace issues with referred candidates. Company shall be required to provide candidates with clear policies and procedures regarding both office policy and ethical conduct. Recruiter is not responsible, and expressly disavows any responsibility for, any violations of Company's policies and procedures by any Candidates, regardless of

whether Company provides such policies and procedures in written format to the candidates. Company acknowledges that its obligation to pay Recruiter for its services is independent of any claims that a candidate violated the Company's policies.

- 2.3 Company is obligated to pay all referral fees listed in Section B below as incurred. Company understands invoices are ***due upon receipt***, and not 30 days after receipt. Company understands that if it falls into arrears with regard to its payment obligations to Recruiter, it will incur late fees and interest from the date of invoices sent to Company. Company acknowledges that there are significant administrative costs associated with Recruiter having to collect on accounts in arrears. Company therefore agrees to pay a monthly charge of 1.5% per month on any outstanding bills that remain unpaid after 30 days. Company understands that if it fails to pay amounts owed Recruiter for 60 days, Recruiter will cease providing candidates to Company. Regardless of whether Recruiter continues to provide candidates to Company after it is delinquent in payments, Company's obligation to pay Recruiter for services rendered survives. If a candidate does not work the full term requested by Company, either because the candidate chooses to leave the position or because Company chooses to terminate the candidate's employment, Company remains responsible for paying Recruiter for all fees incurred as described in Section B below.
- 2.4 When seeking Recruiter's services, Company shall notify Recruiter of anticipated duration of need for candidate(s). Recruiter will use such information and best efforts to find candidates who are available for the entire duration provided. If a single candidate is not available for the entire duration, Recruiter will attempt to place the minimum number of candidates with Company for the duration of the assignment so as to facilitate minimal retraining of personnel. In the event the need for candidate(s) changes, Company will immediately notify Recruiter of any changes and/or additions to the work schedule of any hired candidates. To the extent a request for candidate(s) is cancelled, Company shall be obligated to pay the cancellation fees set out in Section B below.
- 2.5 Prior to hiring of any candidate referred by Recruiter on a permanent basis, Company shall immediately notify Recruiter in writing of the hourly rate Company will pay the candidate. Company understands that Recruiter uses such information to locate

candidates willing to accept terms of employment consistent with the offered rate of pay. However, Recruiter plays no role in either setting the hourly rate or accepting said rate on behalf of the candidates. Company therefore agrees it will not attempt to adjust the rate of pay down after a candidate has been referred to Company based upon its representation of rate of pay. Company acknowledges that attempting to adjust the rate of pay after referral is an unfair business practice. For candidates who will be hired on a temporary/working interview basis, the compensation schedule in Section B below shall apply.

- 2.6 Company will not discriminate against any candidate based upon sex, race, sexual orientation, gender, religion, age, marital status, pregnancy status, disability, or national origin. Company will not ask Recruiter to locate candidates based upon any of these characteristics. To the extent a candidate is required to speak a certain language in order to safely work with Company's clientele, Company will notify Recruiter.
- 2.7 Recruiter is not responsible for payroll issues, theft of personal items or property from Company by a candidate, injuries to or caused by candidates, improper or immoral behavior by candidates, or willingness or ability of candidate to remain employed by Company. To the extent permitted by law, Company agrees to indemnify, defend, and hold Recruiter harmless related to all such issues.
- 2.8 Company acknowledges that Recruiter has invested substantial time and resources in identifying, recruiting, and qualifying candidates for Company. The Company agrees to keep the names of any candidates referred to it by Recruiter confidential and will not share the names of any referred candidates with colleagues or business partners, whether Company hires a referred candidate or not. In addition to any other damages to which Recruiter may be entitled due to a breach of this provision, Company agrees to pay placement fees listed in Section B below for any candidate Company refers to any third party who is then hired by the third party.

B. Fee Schedule

Company agrees that all fees stated herein are due Recruiter if any of the candidates referred by Recruiter are hired by Company (either on a temporary or permanent basis) after Recruiter has sent candidate's information to Company. Even if the Company has worked with the candidate in the past, has interviewed the candidate, or has received the

candidate's resume from another source, so long as candidate is hired after Recruiter has sent candidate's information to Company, fees are due and payable to Recruiter. Company further agrees that if any candidate provided by Recruiter is hired by Company within 365 days of said referral or the last day a candidate has worked for Company due to a referral (whichever is later), all applicable fees are due Recruiter.

For instance, if a candidate is referred to Company on February 1, 2017 and Company does not immediately hire the candidate but later hires the candidate as a permanent employee on January 15, 2018, a permanent placement fee will be due to Recruiter. Another example: if Company hires a candidate referred to it on February 1, 2017 and hires and uses the candidate until March 15, 2017 and then later rehires the candidate from December 1, 2017 through December 20, 2017 and again hires the candidate from June 1, 2018 through June 30, 2018, Recruiter is entitled to placement fees for all three periods during which candidate was employed by Company.

Company understands it has an affirmative duty to report all information related to its hiring of any candidate referred by Recruiter to Recruiter. Recruiter is not required to ask for such information. Rather, it should be provided voluntarily and immediately by Company so as to facilitate proper payment of Recruiter's fees.

1. Temporary Referral Fees (includes short term placements and working interviews)

For placements on a daily or short term basis, the following fees apply:

\$50 per day for Dental Assistants/Administration/Registered Dental Assistants/ Registered Dental Assistants in Extended Functions

\$60 per day for Registered Dental Hygienists

\$75 per day for DDS

\$100 per day for orthodontists, endodontists, oral surgeons, periodontists, pedodontists, and prosthodontists

2. Cancellation Fees

If an order is cancelled after a candidate has been found by Recruiter and Recruiter has notified Company that it has located a candidate, the following cancellation fees apply for **each confirmed day that is cancelled:**

\$25 per day for Dental Assistants/Administration/Registered Dental Assistants/ Registered Dental Assistants in Extended Functions

\$30 per day for Registered Dental Hygienists

\$37.50 per day for DDS

\$50 per day for orthodontists, endodontists, oral surgeons, periodontists, pedodontists, and prosthodontists

If an assignment is cancelled the same day it is scheduled to start, the full amount due for such services shall be paid by the Company. All requests for cancellation **must** be in writing and sent via email to maydaydental@gmail.com. If a cancellation request is made orally, cancellation fees will apply, regardless of when the request to cancel is made.

If a scheduled candidate cancels a date s/he is scheduled to work then no cancellation fee shall apply, provided Company notifies Recruiter upon learning that the candidate is unable to work and provides Recruiter an opportunity to place another candidate in the position.

If a candidate is hired by Company and is found to be unfit for the position, Company may terminate candidate and Recruiter will locate a replacement candidate with no cancellation fees imposed.

3. Services on Demand Fee

Recruiter's hours are Monday through Friday (legal federal holidays excepted) from 8 a.m. to 5 p.m. California time. Although Recruiter can be available to Company 24 hours per day, 7 days per week, if services are requested outside the normal operating hours described above, an extra fee for emergency and/or last minute services will be paid by Company as follows:

\$75 per day for Dental Assistants/Administration/Registered Dental Assistants/ Registered Dental Assistants in Extended Functions

\$85 per day for Registered Dental Hygienists

\$100 per day for DDS

\$125 per day for orthodontists, endodontists, oral surgeons, periodontists, pedodontists, and prosthodontists

4. Permanent Placement Fees

In the event Company or any of its affiliates hires a candidate referred to it by Recruiter on a permanent basis, Company agrees to pay Recruiter a placement fee equal to 10%

of the candidate's highest salary based on any consecutive 7 day period on annualized basis during the first year of employment with the Company for all candidates other than specialists (the "Referral Fee"). For dentists and specialists (orthodontists, endodontists, oral surgeons, periodontists, pedodontists, and prosthodontists) the referral fee will equal 15% of the candidate's highest salary based on any consecutive 7 day period on annualized basis during his/her first year of employment with the Company. Any Referral Fee is independent of, and in addition to, any fees paid for temporary placement, cancellation, or Services on Demand. The full Referral Fee is due even if a candidate leaves the employment of Company before the first year of work has been completed.

4a. Audit Rights.

It is the Parties' intent that Recruiter be paid for all placements facilitated through its services. To that end, Recruiter shall be provided with Company's third party payroll contact information (or internal contact if Company processes its own payroll) and shall have the right to seek compensation information from the payroll company directly to confirm wages paid to any candidate referred by Recruiter. Company shall take all actions necessary to facilitate the release of such information to Recruiter immediately upon request. Additionally, Company shall provide Recruiter copies of any 1099s or W2s sent to any candidate after a permanent placement for the two years after candidate is hired permanently.

5. Compensation Schedule

Company agrees to pay candidates the following minimum wages:

DA/Sterilization	\$17-25 per hour
RDA	\$20-30 per hour
Administration	\$18-36 per hour
RDAEF	\$28-37 per hour
RDH	\$55 per hour if 8 patients; \$60 per hour if 10 patients
DDS	\$75 - \$100 per hour
Specialists	Determined at the time assignment is requested.

All hourly rates are based on experience and knowledge. Recruiter will advise Company of the applicable rate at the time the candidate is offered for placement. Company is solely and exclusively responsible for the payment of wages set out above.

If an assignment is cancelled less than 12 hours before it is scheduled to start and

the candidate reports to Company for work, Company agrees to pay the candidate for 4 hours of work at the agreed upon rate.

Recruiter will invoice Company on a weekly basis for any fees incurred. Fees are due upon receipt of the invoices. Company acknowledges that there are significant administrative costs associated with Recruiter having to collect on accounts in arrears. Company therefore agrees to pay a monthly interest charge of 1.5% per month on any outstanding bills that remain unpaid after 30 days.

3. Indemnity

Company understands, acknowledges, and agrees that Recruiter is not the employer of any candidates it refers to Company. Company is solely and exclusively responsible for all wages to be paid to candidates. Company agrees to defend, indemnify and hold Recruiter and its agents, employees, and representatives harmless from any and all claims, losses, expenses, fees including attorney and expert fees, costs, damages, and judgments that may be alleged or obtained against Recruiter or any of its agents, employees, or representatives that result from or arise in connection with any employment by Company of any of the candidates referred by Recruiter, including but not limited to wage claims, employment claims, personal injury claims, property claims, discrimination claims, tort claims, and criminal claims. Such indemnification shall include advancing all expenses incurred by Recruiter in connection with the investigation, defense, settlement or appeal of any civil or criminal action or proceeding related to any candidates referred to Company by Recruiter. The advances to be made hereunder shall be paid by the Company to Recruiter within 10 days after delivery of a written request therefor.

4. Other Provisions

A. Non-exclusive. Recruiter shall have the right to place candidates with any third party interested in hiring said candidates.

B. Governing Law. This Agreement is entered into in Walnut Creek, California. The Agreement shall be governed by California law, without to conflict of laws. The Parties consent to and select state and federal courts in California as the jurisdiction and venue to resolve any disputes arising from or related to this Agreement.

C. Integrated Agreement. This Agreement constitutes the complete agreement between the Parties and supersedes any and all prior understandings, conversations, and proposals, and may not be amended, except by written agreement executed by the Parties.

D. Relationship. The relationship between the parties to this contract is that of

independent contractors. Nothing contained herein is intended to create an employment relationship or an agency relationship between these Parties. Neither Party may assign their rights or responsibilities under this contract without the expressed written consent of the other.

E. Severability. If any provision of this Agreement is held to be invalid or unenforceable for any reason, the remaining provisions of this Agreement will continue to be valid and enforceable. If a court or any trier of fact finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision this Agreement would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

F. Non-Waiver. Company agrees that the failure of Recruiter to take action under this Agreement or the waiver of a breach of this Agreement shall not affect Recruiter’s rights to require performance hereunder or constitute a waiver of any subsequent breach.

G. Headings. The paragraph headings in this Agreement are for purposes of convenience only and shall not limit or otherwise affect any of the terms hereof.

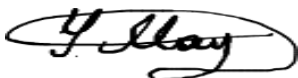
H. Attorney’s Fees and Costs. The Parties agree that in the event of a dispute arising under or related in any way to this Agreement, the non-prevailing party shall pay all costs and expenses, including reasonable attorneys’ fees, that may arise or accrue from enforcing this Agreement or in pursuing any remedy provided by applicable law whether such remedy is pursued or sought by mediation, arbitration, the filing of a lawsuit, and appeal, or otherwise.

I. No Construction Against Drafters. No provisions of this Agreement shall be constructed against or interpreted to the disadvantage of any Party by any court by reason of such Party’s having or being deemed to have drafted, prepared or imposed such provision.

J. Execution. This Agreement may be executed in two or more counterparts, each of which will be deemed an original, but all of which together shall constitute one and the same instrument. Once signed, both parties agree any reproduction of the Agreement made by reliable means (e.g., photocopy, electronic signature, photo, scan, or fax) is considered an original.

K. Authority to Execute. The undersigned signatory represents and warrants s/he has authority to sign on behalf of the Party for whom s/he signs and to legally bind said Party to this Agreement.

Light Speed Staffing Solutions dba Mayday
Dental Staffing
By: _____



Print Name: _Yana Mayfield

Title: _CEO

Dated: _____

Company:

By: _____

Print Name:

Title: _____

Dated: _____

